

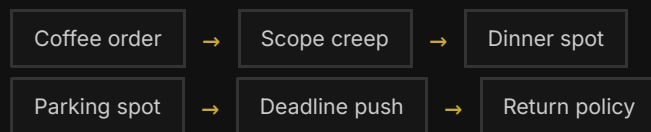
NOD ACADEMY

THE BLACK SWAN GROUP · TACTICAL REFERENCE GRAPHICS · DAN CRUZ

LEVEL 1 · FOUNDATION

Ch 1: The Negotiation Is Already Happening

EVERY INTERACTION IS A NEGOTIATION. AWARENESS IS THE FIRST WEAPON.



ALL OF THE ABOVE = NEGOTIATIONS

Most people: asleep at the wheel | You: awake

"You can't win a game you don't know you're playing."

LEVEL 1 · FOUNDATION

Ch 2: Your Strongest Lever — Walkaway Power

BATNA IS YOUR REAL POWER. DESPERATION IS YOUR GREATEST LIABILITY.

Your BATNA	Their BATNA	Result
Strong (2+ options)	Weak	You control it
Weak (none)	Strong	They control it
Both weak	Both weak	Last to blink wins
Both strong	Both strong	Most creative deal wins

PREP: What is my BATNA? · What is theirs? · How do I strengthen mine?

"Desperation is a smell. The other side always detects it."

LEVEL 1 · FOUNDATION

Ch 3: The Other Side Is Human Too

PEOPLE NEGOTIATE ON EMOTION DISGUISED AS LOGIC. EMPATHY IS INTEL.

Their Position	Real Emotion	Your Move
"Price is firm"	Fear of being low-balled	"I respect your rates. Here's what I bring..."
"We need	Anxiety	"What do you need to

LEVEL 1 · FOUNDATION

Ch 4: Listening Is the Real Superpower

THE PERSON WHO LISTENS CONTROLS THE CONVERSATION.

Gear 1: Selective	Gear 2: Active	Gear 3: Empathic
Hear keywords only	Hear full message	Hear what's NOT said
Planning rebuttal	Taking notes	Reading emotion + tone

more time"	about deadline	feel secure?"
"I'll think about it"	Fear of wrong decision	"What would you need to feel confident?"
"That's the policy"	Protecting turf / ego	"What would make this easier for you?"

"Empathy is not agreement. It's intelligence."

Body: half-turned	Body: facing them	Body: fully present
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UPGRADE: Pause 3 seconds before speaking. Forces gear shift.

"The speaker feels powerful. The listener is powerful."

LEVEL 1 · FOUNDATION

Ch 5: Silence Is a Weapon

AFTER YOU MAKE AN OFFER — SHUT UP. FIRST TO SPEAK LOSES.

- 1 Make your offer or request
- 2 **STOP TALKING — 5 second count**
- 3a They speak → Gift: objection = question in disguise
- 3b They stay silent → "Take your time." Then wait again.
- 4 Answer only what they asked. Then stop again.

"First person to speak after an offer loses."

LEVEL 1 · TOOLKIT

Ch 6: Mirroring

REPEAT LAST 1-3 WORDS WITH RISING INFLECTION. THEY ELABORATE. YOU LEARN.

Them: [statement]



You: "[last 1-3 words]?" ↑ rising tone



[SILENCE]



Them: [elaborates — deeper layer revealed]

↓ repeat until real concern surfaces

Now you have the intel to close

"The mirror is a key. The silence is the door. Use both."

LEVEL 1 · TOOLKIT

Ch 7: Labeling

NAME THE EMOTION. "SOUNDS LIKE..." — THEY FEEL HEARD AND OPEN UP.

What emotion am I sensing?

Clear → "It sounds like you are [X]"

Unsure → "It see

LEVEL 1 · TOOLKIT

Ch 8: The Accusation Audit

NAME EVERY BAD THING THEY COULD THINK — BEFORE THEY SAY IT. DISARMS ALL RESISTANCE.

What they might think

How you name it first

↓ SILENCE ↓

They agree → elaborate with next tool

They correct

"Named emotions lose their power over the conversation."

"Too expensive"

"I know this isn't cheap..."

"You missed last time"

"I know we had delivery issues before..."

"You're pushing me"

"I know it feels like I'm rushing you..."

"This is risky"

"I know there's risk here..."

Name them ALL in your OPENING. Then make your case.

"Name the monster before it grows. It shrinks when it's seen."

LEVEL 1 · TOOLKIT

Ch 9: The Power of "No"

"NO" MAKES PEOPLE FEEL SAFE. ASK FOR IT ON PURPOSE.

Pressure Frame (yes-seeking)

No-Frame (safer entry)

"Do you have a minute?"

"Is this a bad time?"

"Would you be interested?"

"Would it be crazy to..."

"Can we do this?"

"Is there any reason we couldn't?"

"Will you approve this?"

"Does anything here give you pause?"

"No" from them = the negotiation just started.

"No" is the beginning of the real negotiation."

LEVEL 2 · TOOLKIT

Ch 10: The Calibrated Question

"HOW" AND "WHAT" QUESTIONS MAKE THEM SOLVE YOUR PROBLEM FOR YOU.

Situation

Calibrated Question

Hit a wall on price

"How am I supposed to work with that?"

They won't budge

"What would need to change?"

They push back hard

"How do you see us solving this?"

Timeline pressure

"What's driving that deadline?"

Hidden constraint

"What's the biggest concern here?"

RULE: "How" and "What" only. Never "Why." — Why = accusation. How/What = invitation.

"Don't argue their position. Question it open."

LEVEL 2 · TOOLKIT

Ch 11: The Flinch

LEVEL 2 · TOOLKIT

Ch 12: Trading — Never Give, Always Swap

REACT VISIBLY TO A NUMBER. THEY'LL
OFTEN ADJUST BEFORE YOU SAY A WORD.

- 1 They name a price
- 2 Repeat it: "\$X?" — raised eyebrows, slight exhale
- 3 2–3 second pause — hold eye contact

They adjust

Take it or mirror again

They hold

"How did you arrive at
that?"

"Your face is a negotiation tool. Use it."

EVERY CONCESSION HAS A PRICE. COLLECT
IT.

"If I can do X — what can you do for me?"

**What you can
trade**

What to ask for

Price reduction

Faster decision / Longer
contract

Extended timeline

Referral or testimonial

Added service

Better payment terms

Reduced scope

First right on next project

"Every yes has a price. Collect it."

LEVEL 2 · TOOLKIT

Ch 13: The Ackerman System

65% → 85% → 95% → ODD FINAL.
SHRINKING STEPS SIGNAL YOUR CEILING.

Target = \$5,000 | Start = 65%

Bid 1: \$3,250		65%
Bid 2: \$4,250		85%
Bid 3: \$4,750		95%
Bid 4: \$4,953		ODD

Between bids: Accusation Audit or Calibrated Question.
Don't rush rounds.

*"The odd final number is not a quirk. It signals: I
did the math."*

LEVEL 2 · TOOLKIT

Ch 14: Paraphrase and Summary

RESTATE → CONFIRM → ADVANCE. THE
SUMMARY CREATES SOFT AGREEMENT.

- 1 They talk. You listen and label.
- 2 **Paraphrase:** "So if I hear you right, the main
concern is ___?"
- 3 Confirmed → proceed | Corrected → gift: real
concern revealed
- 4 **Summary:** "You need X · The constraint is Y · The
win looks like Z — is that right?"
- 5 "Yes" = soft agreement → proceed to close

*"A perfect summary is worth more than a
perfect argument."*

LEVEL 2 · TOOLKIT

Ch 15: Validation

"THAT MAKES SENSE BECAUSE..." —
VALIDATE LOGIC WITHOUT SURRENDERING
POSITION.

LEVEL 2 · TOOLKIT

Ch 16: Elicitation & Tone of Voice

Agreement x

Validation ✓

Wrong Move x

"You're right, we'll do it your way."
Gives up ground

"That makes sense because you've been in that situation."
Keeps ground, lowers defense

"I understand but..."
"But"
cancels everything before it

FORMULA: "That makes sense because [their logic]. AND what I'm working with is [your reality]."

"Validate the logic. Disagree with the outcome."

HOW YOU SAY IT IS 38% OF THE MESSAGE.
VOICE IS A WEAPON.

Mode

Tone

Use When

Assertive

Direct, clipped, fast

Setting a hard limit (use sparingly)

Playful / Warm

Light, smiling

Building rapport — most conversations

Late-Night FM

Slow · Low · Deliberate

Naming price · Holding position · Delivering hard news

Pace Lead (anchor)

Slow down while they speed up

De-escalating tension

"The late-night voice is a scalpel. Most people use a hammer."

LEVEL 2 · SCENARIOS

Ch 17: Salary Negotiation

THEY ALREADY PICKED YOU. DON'T GIVE YOUR NUMBER FIRST.

- 1 They ask "What are you looking for?" → **"What's the range for this role?"**
- 2 They give range (\$70K–\$85K) → Your ask: top of range + 10% = ~\$93K
- 3 They counter (\$84K) → Flinch. Silence. "What else is flexible in the package?"
- 4 **Never accept same-day.** "Can I have until Thursday?"

"The first number anchors the room. Don't throw it."

LEVEL 2 · SCENARIOS

Ch 18: Buying a Car

THE DEALERSHIP HAS SCRIPTS FOR YOU. OWN ONLY ONE NUMBER: OUT-THE-DOOR.

Dealer Move

Your Counter

"What monthly payment works?"

"I'm focused on the out-the-door total."

"We can stretch to 84 months."

"What's the OTD on a 48-month deal?"

"Your trade is worth \$X."

Get a Carmax quote first. "They offered me \$Y."

"Come in and we'll work it out."

Negotiate by email until OTD is set.

"Every time they say 'monthly payment,' say 'out-the-door price.'"

LEVEL 2 · SCENARIOS

Ch 19: Renting an Apartment

LANDLORDS WANT STABLE TENANTS MORE THAN TOP DOLLAR. BE THE OBVIOUS CHOICE.

LEVEL 2 · SCENARIOS

Ch 20: Real Estate Deals

TERMS CLOSE DEALS. PRICE JUST GETS YOU IN THE ROOM.

CHOICE.

What you bring	What you ask for
Credit report (printed)	Lower monthly rent
Proof of income	Reduced security deposit
Previous landlord refs	Stable rate with long lease
First + last upfront	Free parking / upgrades

"If I sign 14 months and pay first + last upfront — would you do \$1,775?"

"The best tenants have the most power. Prove you're one."

What you can trade	What you want
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Fast close (21-day)	Lower price
No home sale contingency	Seller-paid concessions
Large earnest money	Included appliances / repairs
Pre-approval (strong lender)	Priority over higher offers

Label the constraint → "Sounds like your seller has a timeline. If we close in 21 days, what's possible on price?"

"Intel question: 'What matters most to your seller beyond price?'"

LEVEL 2 · SCENARIOS

Ch 21: Contractor / Service Quotes

THEIR FIRST NUMBER IS AN OPENING. ONE QUESTION UNLOCKS 10–15%.

- 1 Quote received → **"Is that the best you can do?"** [say nothing] — often 10–15% off alone
- 2 Bundle: "If I add [other job], what's the total?" → spreads fixed costs
- 3 Reference relationship: "I've used you before — can you do anything on that?"
- 4 Competition: "I have another quote at \$Y. Can you match?"

"Every quote has a discount built in. Use the question to unlock it."

LEVEL 2 · SCENARIOS

Ch 22: Difficult Conversations with Family

STAKES ARE IN RELATIONSHIPS, NOT DOLLARS. LABEL, MIRROR, PAUSE — IN THAT ORDER.

- 1 **PAUSE** — 3 breaths before you speak
- 2 Label first: "It sounds like this has been weighing on you."
- 3 SILENCE — let them respond. Mirror what they say.
- 4 Only then state your position: "Here's what's going on for me..."
- 5 Calibrated close: "What would make this work for both of us?"

"In family negotiations, being right costs more than you think."

LEVEL 2 · SCENARIOS

Ch 23: Conflict at Work

POSITIONAL BARGAINING DAMAGES THE RELATIONSHIP. FIND THE INTEREST BEHIND THE POSITION.

LEVEL 3 · ADVANCED

Ch 24: Reframing

WHOEVER DEFINES THE FRAME CONTROLS WHAT'S POSSIBLE.

Position (what they say)**Interest (why they say it)**

"I can't approve that."

Worried about precedent / risk

"That's not a priority."

Their plate is already full

"Talk to me next quarter."

Timeline pressure from above

"What's your biggest concern about this?" → Build your proposal around their answer.

"At work, win the interest, not the argument."

Current Frame**New Frame****How to say it**

"This is expensive"

Investment

"The real cost is not doing it."

"We're stuck"

New information

"This tells us something useful."

"You vs. me"

Shared problem

"How do we solve this together?"

"One-time deal"

Relationship opening

"This is how we start."

"Control the frame, control the outcome."

LEVEL 3 · ADVANCED

Ch 25: The Black Swan

EVERY DEAL HAS ONE HIDDEN PIECE THAT CHANGES EVERYTHING. FIND IT.

SIGNS YOU'RE MISSING A BLACK SWAN

- Deal stalls with no clear reason
- Agreement in principle, no movement
- Counterpart seems motivated but stuck
- "It's not you, it's us" energy

BLACK SWAN QUESTION:

"Is there anything about this I should know that I probably haven't asked?"

"The info that changes the deal is almost never the info they volunteered."

LEVEL 3 · ADVANCED

Ch 26: Deadline Dynamics

REAL DEADLINES ARE RARE. PROBE EVERY ONE.

They name a deadline

"What happens if we can't meet that?"

REAL DEADLINE

Specific consequence named. Respond honestly to timing.

ARTIFICIAL

Vague answer. Negotiate the deadline itself.

"A deadline with no consequence is just a suggestion with urgency."

LEVEL 3 · ADVANCED

Ch 27: The Power of "Fair" & Multiple Offers

INVOKE FAIRNESS. PRESENT 3 OPTIONS — YOU WIN REGARDLESS OF WHICH THEY CHOOSE.

LEVEL 3 · MASTERY

Ch 28: Higher Authority & Strategic Escalation

"I NEED TO CHECK WITH MY PARTNER" IS A PRESSURE RELEASE VALVE. PLANT IT EARLY.

Situation**Higher Authority Move**

OPTION A

Full scope ·
Full price ·
Fastest result

OPTION B

Core scope ·
Payment plan
· Phased

OPTION C

Minimum
viable ·
Lowest price ·
Entry

All three must be genuinely acceptable to you. Their choice reveals their priority: price · risk · timeline. Add the fairness frame: **"I want this to feel right for both of us..."**

"Giving someone a choice is not giving up control. It's transferring the feeling of control."

Pressure to
decide now

"I need to run this by my partner / board."

Big move, no
leverage

"That's outside what I can approve alone."

Need a soft no

"My partner reviewed this — numbers don't work."

Reset the
dynamic

"I'd like to get counsel involved before we go further."

RULE: Plant the higher authority EARLY so invoking it later feels expected, not like an escape.

"The pause created by 'I need to check' is worth more than the decision made under pressure."

LEVEL 3 · MASTERY

Ch 29: Late-Night Tactic & Pattern Matching

FATIGUE IS A WEAPON. PATTERN RECOGNITION IS YOUR DEFENSE.

Move They Make	Pattern	Your Response
"Offer expires today"	Fake deadline	"What happens if we need more time?"
Flinch at your number	Reaction test	Hold position. Say nothing.
New items late in session	Fatigue play	"Let's see all items before we continue tomorrow."
"That's our final offer"	Rarely final	Flinch. Wait. Then calibrate.

"Never make a big decision when you're tired. The other side may be counting on it."

LEVEL 3 · MASTERY

Ch 30: Storytelling as Leverage

FACTS TELL, STORIES SELL. A STORY IS AN ARGUMENT THAT DOESN'T FEEL LIKE ONE.

- 1 **Setup (15s):** "I had a client who was in a similar situation..." [set the scene]
- 2 **Tension (20s):** "They were facing [the exact concern your counterpart has right now]..."
- 3 **Choice (10s):** "They had two options — do X or do Y."
- 4 **Outcome (20s):** "They chose X. Here's what happened..." [real numbers, real details]
- 5 **Land it:** "That's why I think [your recommendation] is the right move here."

"A story is an argument that doesn't feel like one."

LEVEL 3 · INTEGRATION

Ch 31: Building Your Practice Routine

LEVEL 3 · INTEGRATION

Ch 32: Teaching Others

YOU DON'T REALLY KNOW IT UNTIL YOU

INSTINCT IS BUILT THROUGH REPS, NOT READING. ONE MICRO-NEGOTIATION PER DAY.

Week	Focus	The Drill
Week 1	Listening	Mirror every conversation partner at least once.
Week 2	Asking	Ask for something every day. "No" is fine. The ask is the rep.
Week 3	Silence	Pause 3 seconds after every significant statement. Count it.
Week 4	Integration	Run label + mirror + calibrated Q + summary in one live conversation.

"The negotiator who practices in low stakes is fearless in high stakes."

YOU DON'T REALLY KNOW IT UNTIL YOU CAN TEACH IT. GAPS APPEAR IN THE QUESTIONS.

- 1 Pick a chapter
- 2 Explain it in 3 sentences to someone who doesn't know it
- 3a **Clear** → go deeper. Teach the nuance.
- 3b **Gaps appear** → note the questions. Re-read. Explain again.
- 4 Role-play the scenario. Swap roles. Give feedback.
- 5 Mastery = fluent explanation + instinctive use

"If you can't explain it simply, you don't understand it well enough yet."

LEVEL 3 · INTEGRATION

Ch 33: Your Negotiation Philosophy

NAME YOUR STYLE. LEAN INTO YOUR STRENGTHS. COVER YOUR BLINDSPOTS.

Natural Strength	Your Style Name
Reading emotions	Empathy-Led
Knowing the numbers	Data-Driven
Staying calm under fire	Composure First
Asking great questions	Curiosity-Led
Walking away easily	Abundance Mindset

"I win negotiations by _____."

"You don't need to be the smartest in the room. Be the most prepared and most present."